

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK-----X
DIANE C. DESOUSA and
THOMAS E. DESOUSA,

Index No.600371/2021

Plaintiffs,

**STIPULATION AND ORDER
OF SUBSTITUTION**

-against-

Justice Assigned:
Hon. Frank TinariRICHARD A. CALVAGNO II and
PATRICK J. KARCHER,Defendants.
-----X

WHEREAS, Plaintiffs Diane C. DeSousa and Thomas E. DeSousa are named plaintiff in the above-captioned action;

WHEREAS, Plaintiff Thomas E. DeSousa passed away on or about July 11, 2024;

WHEREAS, Diane C. DeSousa, has been duly appointed as Executor of the Estate of Thomas E, DeSousa, as evidenced by the attached Order of the Surrogate's Court for Suffolk, State of New York, and which is dated August 12, 2025 and attached hereto as Exhibit "A";

WHEREAS, pursuant to CPLR §§ 1015 and 1021, the Estate of the Decedent may be substituted as a party plaintiff in this action; now therefore,

IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned counsel for all parties hereto, that: Diane C. DeSousa as Executor of the Estate of Thomas E. DeSousa, deceased, is hereby substituted in place and stead of Thomas E. DeSousa as a plaintiff in this action; and it is further

AGREED, the caption of this action shall be amended accordingly to reflect said substitution, to wit:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK**

-----X
DIANE C. DESOUSA and
DIANE C. DESOUSA AS EXECUTOR OF
THE ESTATE OF THOMAS E. DESOUSA,

Plaintiffs,

-against-

RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,

Defendants.
-----X

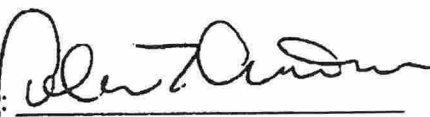
without prejudice to any party; and it is further

AGREED, that all prior proceedings in this action shall remain in full force and effect as
if the substituted party had been originally named; and it is further

AGREED, John N. Cuomo is authorized to appear as counsel for Diane C. DeSousa, and
as Executor of the Estate of Thomas E. DeSousa;

This stipulation may be executed in counterparts and electronically, each of which shall
be deemed an original.

LAW OFFICE OF JOHN N. CUOMO

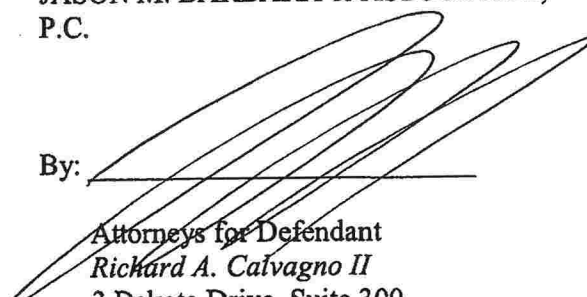
By: 

John N. Cuomo
Attorney for Plaintiffs

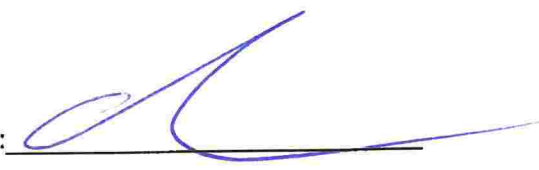
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631-403-0515

JASON M. BARBARA & ASSOCIATES,
P.C.

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By: 

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By: 

Attorneys for Defendant
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SO ORDERED:

HON. _____

Justice of the Supreme Court

EXHIBIT A

At a term of the Surrogate's Court of the
State of New York held in and for the
County of Suffolk at Riverhead, New York.

PRESENT: Hon. Vincent J Messina Jr, Surrogate

In the Matter of the Application for
Preliminary Letters Testamentary in the Estate of

Thomas E DeSousa

Deceased.

**ORDER GRANTING
PRELIMINARY LETTERS
WITH LIMITATIONS**

File No. 2025-1490/A

A verified petition having been filed by Diane C DeSousa praying for a decree admitting to probate a written instrument dated September 8, 2023 propounded as the Last Will and Testament of the above-named decedent, and

An application having been filed by Diane C DeSousa praying for an order granting Preliminary Letters Testamentary and it appearing to the satisfaction of this court that the petitioner is the executor named in the paper writing purporting to be the Last Will and Testament, duly filed in the court, and it appearing that it is in the best interest of the estate that Preliminary Letters Testamentary issue, now it is

ORDERED, that pursuant to SCPA 1412 Preliminary Letters Testamentary be issued to Diane C DeSousa; and it is further

ORDERED, that the authority of such preliminary executor be restricted in accordance with, and that letters herein issued contain, the limitations(s) as follows:

Limitations/Restrictions: The preliminary executor shall have no authority to continue a business solely owned by this decedent. Such authority may be sought by separate petition pursuant to SCPA 2108 and the power and authority of the preliminary executor shall be otherwise limited pursuant to SCPA 1412.

DATED: *Aug 12, 2025*

Vincent J Messina Jr
Vincent J Messina Jr
Surrogate